



## CHAPTER xcvi.

An Act for uniting into one drainage district the two drainage districts in the parish of Warboys in the county of Huntingdon known as the First and Third Drainage Districts constituted under an Act of the fifteenth year of King George the Third chapter fifteen and to amend that Act and for other purposes.

A.D. 1906.

[20th July 1906.]

**W**HEREAS an Act was passed in the fifteenth year of the reign of King George the Third intituled "An Act for draining and preserving certain fen lands low grounds and commons in the several parishes of Ramsey Bury Wistow Warboys Somersham Colne and Pidley with Fenton in the county of Huntingdon and in the parishes of Chatteris and Doddington within the isle of Ely in the county of Cambridge" (herein-after called "the Act of 1775") whereby certain lands in the said Act described were divided into two districts called in the Act of 1775 and herein-after referred to as the upper and lower districts for embanking and into five districts (called in the Act of 1775 and herein-after referred to as the first second third fourth and fifth districts respectively for draining) the first and third districts comprising lands lying within the said parish of Warboys and the Act of 1775 appointed or provided for the appointment of Commissioners of the upper and lower districts respectively and Commissioners for the first second third fourth and fifth districts respectively the Commissioners for the first district being the owners of forty acres of land lying within that district and liable to be taxed with power to such owners to appoint a



A.D. 1906. Commissioner for every fifty acres owned by them respectively over and above such forty acres and the Commissioners for the third district being the lords and ladies of the manors and the rectors and vicars of Warboys Little Raveley Broughton Old Hurst Woodhurst Saint Ives and Houghton with Witton for the time being John Leman and his heirs and the owners of two houses having right of common within the third district and the Warboys Commissioners in consideration of their rights upon three commons called the New Pasture the Cow Common and the Stray Pasture were declared to have two votes at all meetings of the third district Commissioners with power for the lords and ladies of the said manors for the time being the said John Leman and his heirs and the owners of two houses having right of common as aforesaid to appoint one Commissioner for every house having right of common in the third district owned by them respectively over and above such two houses as aforesaid such last-mentioned deputies to be qualified as therein mentioned and the Act of 1775 contained provisions as to the time and place of meetings of the said respective Commissioners (including the Commissioners for the first and third districts) and the respective Commissioners for (inter alia) the first and third districts were empowered to assess yearly taxes or rates at their yearly meetings on the lands lying within the first and third districts respectively and subject or liable to be taxed by virtue of the Act of 1775 not exceeding in the year (except as therein mentioned) for every acre of land in the first district the sum of two shillings and for every acre of land in the third district the sum of three shillings and were also empowered to borrow money upon the credit or security of the said taxes or rates with a provision that no more than two thousand pounds should be borrowed or owing at any one time upon the credit or security of the taxes in the first and third districts respectively and the Act of 1775 contained powers for the Commissioners of the third district to enclose and let parts not exceeding altogether three hundred and sixty acres of the commons lying within the third district for the purpose of producing the taxes or rates levied or charged upon the said commons and the Commissioners for the first and third districts respectively were by the Act of 1775 required and empowered to make certain drains and other works and erect certain mills and to maintain such drains works and mills and the Act of 1775 conferred other powers on the Commissioners of the first and third districts respectively including a



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power to distrain for payment of taxes or rates and contained provisions for the protection of the works belonging to the said Commissioners respectively and other provisions relating to the said first and third districts and the Commissioners for the same respectively : A.D. 1906.

And whereas the respective Commissioners for the first and third districts made and erected the drains works and mills required by the Act of 1775 to be made and erected respectively :

And whereas the Commissioners for the third district in pursuance of the powers conferred upon them by the Act of 1775 enclosed three hundred and sixty acres of the common lying within such district and the same were at the date of the Inclosure Act herein-after mentioned let on leases in the said Inclosure Act mentioned :

And whereas an Act was passed in the thirty-fifth year of the reign of King George the Third intituled "An Act for  
" dividing inclosing and draining the open common fields  
" common pastures commonable and waste lands and fen lands  
" within the manor and parish of Warboys in the county of  
" Huntingdon" (herein-after called "the Inclosure Act of 1795") whereby Commissioners were appointed and were empowered to enclose the commons in the said manors and parish and to make an award dividing and allotting the lands to be enclosed in pursuance of the said Act and it was thereby provided that the said leases of three hundred and sixty acres should immediately after such division and allotment or at such other times as the said Inclosure Commissioners should direct cease determine and be void and that from and after the dividing enclosing and awarding the lands therein directed to be divided enclosed and awarded the Commissioners for the upper district of embankment and also the Commissioners for the third district for drainage should and they were thereby empowered and required from time to time to raise and levy any sum or sums of money not exceeding the sum of three hundred pounds in any one year as they the said Commissioners should judge necessary for the purposes of carrying the Act of 1775 into execution upon such of the lands by the Inclosure Act of 1795 directed to be divided and enclosed as were then liable and subject to be rated and taxed by the Act of 1775 for the purpose of embanking and draining and that it should and might



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A.D. 1906. be lawful for the said Commissioners to and for the upper district of embankment and to and for the Commissioners for the third district for drainage to receive collect and recover such sum or sums of money upon all and every the owner or owners occupier or occupiers of such lands as were by the Inclosure Act of 1795 directed to be divided and enclosed as were then liable to be rated and taxed by the Act of 1775 for the purpose of embanking and draining proportionately according to the quantity and value of each respective allotment in such manner as they were enabled to collect and recover any rates and taxes directed to be raised levied or assessed for such purposes by the Act of 1775 :

And whereas in pursuance of the Inclosure Act of 1795 and the award made thereunder the whole of the common lands lying within the third district have been allotted and enclosed and there are not now any houses within the third district having right of common in the third district and persons who are the owners of lands allotted by the said award in lieu of the rights of common formerly appurtenant to commonable houses have acted as Commissioners for drainage for the third district and doubts have arisen as to the proper persons to act as Commissioners for drainage for the third district and whether the persons who have acted as such Commissioners have been duly qualified :

And whereas under or by virtue of the Middle Level Act 1810 the Middle Level Act 1844 the Middle Level Act 1848 the Middle Level Act 1862 the Middle Level Act 1867 and the Middle Level Act 1874 (herein-after together referred to as "the Middle Level Acts") further powers are conferred on the Commissioners for the first and third districts respectively and such Acts contain provisions applying to the first and third districts respectively :

And whereas there are now no moneys owing on the security of the taxes or rates of the first district :

And whereas six several sums of one hundred pounds each (making altogether the sum of six hundred pounds) with interest are secured to Herbert Flack Bird on the security of the taxes or rates of the third district under six several mortgages or assignments of such taxes or rates dated the twenty-seventh day of July one thousand eight hundred and ninety-two given by the Commissioners of the third district in pursuance of



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their powers under the Act of 1775 to George Edward Foster which were on the thirteenth day of February one thousand eight hundred and ninety-nine transferred to the said Herbert Flack ird : A.D. 1906.

And whereas sums amounting altogether to the sum of seven hundred pounds have in addition to the said sum of six hundred pounds been borrowed by the Commissioners for the third district for the purpose of the execution of the Act of 1775 and are still owing :

And whereas the taxes or rates authorised by the Act of 1775 to be levied by the Commissioners of the third district are insufficient to pay the interest on the moneys borrowed as aforesaid and to provide for the effectual drainage of the third district and the existing mill and works of the third district are inadequate or unsuitable for the effectual drainage of the third district :

And whereas the existing engine and engine-house of the first district require to be repaired or renovated :

And whereas certain of the said common lands lying within the third district so allotted and enclosed as herein-before recited were allotted as or so as to become copyhold lands of the manors of Warboys Little Raveley Broughton Old Hurst Woodhurst Saint Ives and Houghton with Witton respectively and other parts of the said common lands were allotted to the rectors of Warboys Broughton and Houghton with Witton and the vicar of Saint Ives respectively but the lords and ladies of the manors of and the rectors and vicars of Warboys Little Raveley Broughton Old Hurst Woodhurst Saint Ives and Houghton with Witton for the time being and the heirs of John Leman have for some time past all ceased to attend the meetings of the Commissioners of the third district or to appoint deputies :

And whereas it is expedient for the more efficient and economical draining of the first and third districts that such districts shall be united to form one district only having one system of drainage and that Commissioners (having qualifications different from those provided for under the Act of 1775) should be appointed for such united district and that such Commissioners (in this Act referred to as "the Commissioners for the united district") should have further or other powers of rating or taxing than are at present authorised for the Commissioners



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A.D. 1906 of the first and third districts and should have the powers and authorities herein-after conferred on them :

And whereas the owners or reputed owners of at least three fourth parts in area of the lands in the first and third districts respectively have agreed to the union of the first and third districts on the terms in this Act contained including in particular that the third district should bear its own debts and the expenses which by or under this Act are to be borne by such district (for which purpose it is expedient that a special rate should be levied in the third district) and that the general acre rate in the first district should always bear to the general acre rate in the third district the proportion in this Act provided :

And whereas it is expedient that the Commissioners for the united district should be authorised by way of substitution for the existing mills or engine-houses of the first and third districts or either of such mills or engine-houses or by way of addition thereto to erect a new mill or engine-house for the purpose of the united district with engineer's house engine or engines and buildings and appliances in connexion therewith :

And whereas it is expedient that the Commissioners for the united district should have power to widen and alter the existing drain of the first district conducting the water of the first district to the existing mill or engine-house of the first district or part thereof and to make a new cut from the said drain into the Forty Foot River and to purchase the necessary land for such new engine-house engineer's house and buildings (herein-after in this preamble together referred to as "the new engine-house and buildings") and for such widening alteration and new cut (which widening alteration and new cut are herein-after referred to as "the works by this Act specifically authorised") and for new drains and other purposes as well as to purchase land by agreement for the general purposes of the Act of 1775 as amended by the Middle Level Acts and this Act or of this Act :

And whereas it is expedient that the Commissioners for the united district should in addition to the powers of borrowing for general purposes by this Act conferred on them have power to borrow on the security of the general rate the money required for the repair or renovation of the existing engine and engine-house



of the first district and the erection of the new engine-house and buildings and the fitting up thereof with the necessary engines machinery pumps tanks and other appliances and also part of the moneys required for the purchase of the lands by this Act authorised to be taken and for the execution of the works by this Act specifically authorised and also should have power to borrow on the security of the special rate or tax which the Commissioners for the united district are by this Act authorised to levy in the third district the remaining part of the moneys required for the purchase of the lands by this Act authorised to be taken and for the execution of the works by this Act specifically authorised and the whole of the sum necessary for discharging the debts of the Commissioners of the third district existing at the commencement of this Act as well as the moneys necessary for payment of the costs of and incidental to the passing of this Act and the expenses of or incidental to the alteration or improvement of the existing drains and works and the making of new drains and works necessary for or consequent on the union or combining of the existing systems of drainage of the first and third districts into one system :

And whereas estimates for the purchase of land for the purposes aforesaid for the execution of the works by this Act specifically authorised for the new engine-house and buildings and the fitting up thereof for the repair or renovation of the engine and engine-house of the first district and for the works required for combining the drainage of the first and third districts into one system of drainage have been prepared by or at the instance of the Commissioners of the first and third districts and are as follows :—

|                                                                   |     |    |    |
|-------------------------------------------------------------------|-----|----|----|
| For the purchase of land—                                         | £   | s. | d. |
| (A) To be paid out of the third district<br>rate fund - - -       | 545 | 0  | 0  |
| (B) To be paid out of the general fund -                          | 40  | 0  | 0  |
| For the works by this Act specifically<br>authorised—             |     |    |    |
| (A) To be paid out of the third district<br>special rate fund - - | 408 | 7  | 0  |
| (B) To be paid out of the general fund                            | 507 | 3  | 0  |
| A 4                                                               |     | 7  |    |



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£ s. d.

For the repair or renovation of the engine and  
 engine-house of the first district and for  
 the erection of the new engine-house and  
 buildings and the fitting up thereof - 5625 12 6

For the works for combining the drainage of  
 the first and third districts into one system  
 of drainage - - - - - 1317 0 0

And whereas the several works included in such estimates  
 respectively are permanent and it is expedient that the cost  
 thereof should be spread over a term of years :

And whereas it is expedient that the Commissioners for  
 the united district should be empowered generally to make  
 alterations and improvements in the existing drains and works  
 of the first and third districts and to make new drains and  
 works for the purpose of uniting or combining the drainage of  
 the first and third districts into one system of drainage (but  
 not so as to authorise the making or extending of any drain  
 channel or cut so as to be more than eleven feet in width at  
 the bottom thereof except as regards the works by this Act  
 specifically authorised) :

And whereas it is expedient that the Commissioners for the  
 united district should have further powers of contracting with  
 the Commissioners of other districts than are or will on the  
 commencement of this Act be conferred on them by virtue of  
 section 198 of the Middle Level Act 1844 :

And whereas the depth of four feet to which owners or  
 occupiers are by section 87 of the Act of 1775 required to  
 make and scour and open dikes is not now sufficient for the  
 effectual drainage of the lands in the first and third districts  
 and it is expedient to confer on the Commissioners the power  
 of from time to time fixing in the united district formed by this  
 Act the depth to which dikes should be kept open and scoured  
 and to substitute for the united district other provisions than  
 those contained in such section :

And whereas it is expedient to confirm the acts and things  
 hitherto done by the persons who have acted as Commissioners  
 for the third district and to absolve all persons (if any) who  
 have whilst unqualified acted as such Commissioners from all  
 penalties which they may have incurred and that provision  
 should be made by the appointment of temporary Commissioners



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for carrying on the drainage of the third district until the commencement of this Act : A.D. 1906.

And whereas it is expedient to incorporate with this Act some of the provisions of the Commissioners Clauses Act 1847 :

And whereas it is expedient that the other provisions in this Act should be made :

And whereas it is expedient to amend the Act of 1775 accordingly :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works by this Act specifically authorised and plans of the lands by this Act authorised to be acquired and a book of reference containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act (other than by agreement) were duly deposited with the respective clerks of the peace for the counties of Huntingdon and Cambridge which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Warboys (Union of Districts) Drainage Act 1906. Short title.

2. Save as otherwise herein-after expressly provided this Act shall come into operation on the twenty-first day of March one thousand nine hundred and seven (which date is herein-after referred to as "the commencement of this Act"). Commence-  
ment of Act.

3.—(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) are hereby incorporated with this Act Provided always that the provisions of the Lands Clauses Acts with respect to the purchase of lands Incorporation of Acts.



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(2) The provisions of the Commissioners Clauses Act 1847 with respect to—

- (A) Meetings and other proceedings of the Commissioners and their liabilities (except sections 36 40 42 43 48 53 and 54);
- (B) Contracts to be entered into and the deeds to be executed by the Commissioners (except section 57);
- (C) The appointment and accountability of the officers of the Commissioners (except section 66);
- (D) The liabilities of the Commissioners and to legal proceedings by or against the Commissioners;
- (E) Mortgages to be executed by the Commissioners (except sections 80 and 84 and subject to the provisions of section 105 of the Act of 1775 and of this Act);
- (F) The accounts to be kept by the Commissioners (except sections 90 to 95 inclusive);
- (G) The making of byelaws;
- (H) Giving notices and orders;
- (I) Proof of debts in bankruptcy and insolvency;
- (K) Tender of amends;
- (L) Recovery of damages not specially provided for and of penalties and to the determination of any other matter referred to justices or to the sheriff;

are hereby incorporated with this Act.

## PART II.

### CONSTITUTION OF NEW DISTRICT AND COMMISSIONERS.

First and third districts united to form new district.

4. From and after the commencement of this Act the districts in the Act of 1775 respectively called the first district or division for drainage (herein-after called "the first district") and the third district or division for drainage (herein-after called "the third district") shall subject as herein provided be united and shall together form one district for drainage and such district shall be called and is herein-after referred to as "the united district."



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5. Every owner for the time being in his own right or in right of his wife or as trustee committee or guardian for any feme covert lunatic minor or other incapacitated person of forty acres of land lying within the united district and subject to be taxed by virtue of this Act shall be and is hereby appointed a Commissioner for the united district for putting the Act of 1775 and this Act and all the powers and authorities herein contained or hereby conferred (either specifically or by reference) into execution with respect to draining the united district and from and after the commencement of this Act the persons appointed by or under the Act of 1775 to be Commissioners with respect to draining for the first and third districts respectively shall save as in this Act expressly provided cease to be Commissioners for such districts respectively and to exercise any powers and authorities under the Act of 1775. When there are more than one trustee committee or guardian for the same property only one such trustee committee or guardian shall act as Commissioner for the united district under this section at one and the same time. The trustee committee or guardian so to act as such commissioner shall from time to time be nominated in writing by the trustees committees or guardians of such property or by a majority of them.

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sioners for  
united dis-  
trict.

6. Every owner in his own right or as aforesaid of forty acres of taxable land lying within the united district is hereby authorised and empowered to appoint by writing under his hand and seal from time to time and for such time or times as he shall think proper one Commissioner for every fifty acres for which he shall be possessed over and above the aforesaid forty acres of taxable land lying within the united district over and above the Commissioners herein-before appointed and except as by section 10 of this Act provided such respective deputies so nominated and appointed as aforesaid shall be Commissioners to all intents and purposes for carrying the Act of 1775 and this Act into execution with respect to the draining of the united district. The names of deputies for the united district shall be enrolled with the clerk for the united district one month at least before they shall be empowered to act in the execution of this Act except such deputies as shall be appointed previously to the first meeting after the commencement of this Act which deputies so to be appointed as aforesaid may respectively act

Commis-  
sioners may  
appoint  
deputies.



A.D. 1906. at the first meeting on producing their respective appointments which appointments may be executed before the commencement of this Act.

Property and powers of Commissioners of first and third districts to vest in Commissioners for united district.

7. From and after the commencement of this Act all lands houses mills buildings engines drains cuts watercourses banks maps plans documents and other property (real or personal) and works of every description belonging to the Commissioners for the first district or to the Commissioners for the third district immediately before the commencement of this Act (including all arrears of rates or taxes made imposed or levied by the Commissioners of the first and third districts respectively and all powers and remedies for recovering the same and the penalties in respect thereof) shall by virtue of this Act be transferred to and vested in the Commissioners for the united district and all powers authorities rights privileges duties and liabilities of the Commissioners for the first district and the Commissioners for the third district respectively as they existed immediately before the commencement of this Act shall (subject to the provisions of this Act) be transferred and attach to the Commissioners for the united district and for the purposes of the Act of 1775 as amended by the Middle Level Acts and this Act the Commissioners for the united district shall as regards the lands lying in the first district be substituted in all respects for the Commissioners of the first district and as regards the lands lying in the third district be substituted in all respects for the Commissioners of the third district and any action or proceeding or cause of action or proceeding existing or pending by against or in favour of the Commissioners for the first district or the Commissioners for the third district immediately before the commencement of this Act may be prosecuted continued and enforced by against or in favour of the Commissioners for the united district as the case may require.

### PART III.

#### MEETINGS AND QUORUM OF COMMISSIONERS.

Meetings of Commissioners for united district.

8. The Commissioners for the united district shall meet once at least in every year in manner following namely at Warboys in the county of Huntingdon the first meeting to be held on the



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twenty-first day of March one thousand nine hundred and seven and subsequent yearly meetings shall be held on the third Thursday in March in each year or such other day as the Commissioners shall from time to time fix and the Commissioners may also from time to time hold special meetings at such times and places as the Commissioners shall see cause or think convenient or otherwise as provided by section 45 of the Commissioners Clauses Act 1847 The time of day and place in Warboys aforesaid of the first meeting of the Commissioners shall be such as the Commissioners for the first district shall fix and such Commissioners shall cause the proper and requisite notices of such meeting to be duly given such notices to be given in like manner as notices of the annual meetings of such Commissioners with such alterations as the circumstances may require. A.D. 1906.

9. The Commissioners of the first and third districts respectively shall if it shall be necessary or expedient for them to hold final annual meetings hold their respective final annual meetings on the twenty-first day of March one thousand nine hundred and seven but before the first meeting of the Commissioners for the united district or on such earlier date as they shall respectively fix. Final annual meetings of Commissioners for first and third districts.

10.—(1) Subject as in this Act provided and to all provisions of the Commissioners Clauses Act 1847 incorporated in this Act all the powers and authorities vested in the Commissioners for the united district may be exercised by any five or more of such Commissioners present at any meeting held in pursuance of this Act Provided always that deputies are not to be counted in any quorum of Commissioners for the purpose of the exercise of any power of borrowing vested in the Commissioners for the united district. Quorum of Commissioners.

(2) In this Act the expression "the Commissioners for the united district" shall include the Commissioners of the united district for the time being and any meeting of them at which any five or more of them are present and where any less number of the Commissioners than five is empowered to do any act or thing then the number of such Commissioners in that behalf prescribed.



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PART IV.

LANDS AND WORKS.

Power to  
take lands.

**11.** Subject to the provisions of this Act the Commissioners for the united district may enter upon take and use the lands delineated on the deposited plans and described in the deposited book of reference.

Correction of  
errors &c. in  
deposited  
plans and  
book of  
reference.

**12.** If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Commissioners for the united district after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the clerk to the parish council of Warboys or with the clerk to the parish council of Doddington or with the clerk to the urban district council of Ramsey according as the lands affected thereby are situated in the said parish of Warboys or the said parish of Doddington or the said urban district of Ramsey and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Commissioners for the united district to take the lands and execute the works in accordance with such certificate.

Period for  
compulsory  
purchase of  
lands.

**13.** The powers of the Commissioners for the united district for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Power to  
purchase  
lands by  
agreement.

**14.** The Commissioners for the united district may in addition to the lands which they are authorised by this Act to take by compulsion and in addition to any lands at the



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commencement of this Act vested in the Commissioners for the first district or the Commissioners for the third district purchase by agreement for the purposes of the Act of 1775 as amended by the Middle Level Acts and by this Act or of this Act and hold any lands within the united district not exceeding in the whole two acres. A.D. 1906.

**15.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Commissioners any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

**16.** Notwithstanding anything in the Lands Clauses Acts to the contrary the Commissioners for the united district may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit any lands for the time being belonging to or vested in them and not required for the purposes of the Act of 1775 as amended by this Act or this Act and may do or execute any deed act or thing proper for effectuating any sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to sell &c. lands.

**17.** Subject to the provisions of this Act the Commissioners for the united district may and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works (herein-after called "the works by this Act specifically authorised") shown on the deposited plans and sections (that is to say) :— Power to widen drain and make a new cut.

Work No. 1 A widening and alteration of the existing Twenty Foot Drain commencing at a point in the parish of Warboys in the county of Huntingdon about 72 chains south of the Tick Fen District engine-house and extending in a northwardly direction for a distance of about 12 chains to the parish boundary of the urban district of Ramsey in



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the said county of Huntingdon The whole of such work is situate in the parish of Warboys in the county of Huntingdon :

Work No. 2 A widening and alteration of the existing Twenty Foot Drain commencing at the end of Work No. 1 at the parish boundary of Ramsey aforesaid and extending in a northwardly direction for a distance of about 25 chains to the parish boundary of Doddington in the county of Cambridge and as incidental thereto or in connexion therewith to alter extend or pull down and reconstruct the existing bridge over the said Twenty Foot Drain on the road or way leading from Puddock Drove to Morley's Farm The whole of such work is situate in the parish of Ramsey in the county of Huntingdon :

Work No. 3 A widening and alteration of the existing Twenty Foot Drain commencing at the end of Work No. 2 at the parish boundary of Doddington aforesaid and extending in a northwardly direction for a distance of about 31 chains to the commencement of Work No. 4 Such work is situate wholly within the parish of Doddington in the county of Cambridge :

Work No. 4 A bell-mouthed new cut about 5 chains in length situate wholly in the parish of Doddington in the county of Cambridge leading from the enlarged drain at the end of Work No. 3 to the proposed new engine-house and continuing from such engine-house into the Forty Foot River.

Temporary  
stoppage of  
roads &c.

**18.** The Commissioners for the united district may from time to time temporarily stop up the road or way leading from Puddock Drove to Morley's Farm including the bridge over the Twenty Foot Drain and also the public way along or near the south bank of the Forty Foot River across part of the lands by this Act authorised to be taken and prevent all persons from passing along and using the same or such part thereof as the works by this Act specifically authorised may affect for any reasonable time during the execution of the works hereby specifically authorised The Commissioners for the united district shall provide reasonable access or means of passage for all persons bonâ fide going to or returning from the said farm or along the said way during any such stoppage.



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**19.** In the construction of the works by this Act specifically authorised the Commissioners for the united district may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans.

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Limits of lateral deviation.

**20.** If the works by this Act specifically authorised are not completed within three years from the commencement of this Act the powers by this Act granted for the making thereof and otherwise in relation thereto shall cease except as to so much thereof as is then completed. Provided that nothing herein contained shall restrict the Commissioners for the united district from exercising any powers with respect to the construction of works conferred by the Act of 1775 as amended by the Middle Level Acts and this Act.

Period for completion of works.

**21.—**(1) The Commissioners for the united district in addition to the works by this Act specifically authorised may upon any lands for the time being belonging to them—

Works for general purposes of Act of 1775 or of this Act.

(A) For the purpose of the effectual drainage of the united district either in addition to the existing mills or engine-houses of the first and third districts or in substitution for such existing mills or any of them erect build and maintain an engine-house for discharging or assisting to discharge the waters of the united district into the Forty Foot River with engineer's house and such other buildings for use in connexion therewith as the Commissioners shall think necessary or expedient and may make fix and maintain all necessary engines machinery pumps tanks and all appliances necessary or convenient in connexion with or subsidiary to the said engine-house herein-before authorised to be erected or any existing engine-house and use or employ either steam electricity or any other artificial or mechanical power or wind for working such engines machinery and pumps as they shall think fit. Provided that if the Commissioners for the united district use or employ electricity for working such engines machinery and pumps such electricity shall be so used or employed as to prevent any interference with telegraphic communication by means of any telegraphs belonging to or used by the Postmaster General; and



A.D. 1906.

(B) For the purpose of the union or combining of the drainage of the first and third districts into one system of drainage or the effectual drainage of the united district may make enlarge alter deepen improve repair or maintain any of the drains cuts channels banks and other works existing at the commencement of this Act whether of the first district or the third district and make and maintain any new drains cuts channels tanks or other works which the Commissioners for the united district may think necessary or expedient for the purposes aforesaid or otherwise for the purposes of the Act of 1775 as amended by the Middle Level Acts and this Act in relation to the united district or of this Act.

(2) Provided that no cut channel or drain constructed under the powers of this Act (except as regards the works by this Act specifically authorised) shall be of any greater width than eleven feet at the bottom thereof.

Power to dis-  
continue ex-  
isting mills  
and sell.

**22.** It shall be lawful for the Commissioners for the united district so soon as they shall have completed the works by this Act specifically authorised and the new engine-house by this Act authorised and the necessary alteration or improvement of the existing drains channels cuts tanks and other existing works of the first and third districts and the making of such other new works as are hereby authorised and as the said Commissioners shall think necessary for the effectual draining of the united district and the discharge of the waters of the same and notwithstanding anything contained in sections 50 and 56 of the Act of 1775 or in either of such sections to discontinue the working of and maintenance of such of the existing two mills or engine-houses now respectively belonging to the first and third districts as shall have become unnecessary for the draining of the united district and the discharge of the waters thereof and may sell the same and all the right and interest of the said Commissioners in the sites thereof respectively and the engines works and other things belonging thereto or used therewith or any of them for such sum or sums of money as they shall think fit and to also discontinue from the place known as the sluice-house or sluice-houses to the Forty Foot River the use and maintenance of the drain now known as the Crease mentioned in section 56 of the Act of 1775 on the south-west side of the West Water conducting



the water of the third district to the existing mill or engine-house known as Crease Mill near to the Forty Foot River and to sell all the right and interest of the said Commissioners in the site of such drain and the said Commissioners shall apply the net proceeds of sale of any property so sold in the manner herein-after provided concerning the same respectively. A.D. 1906.

## PART V.

### RATING AND BORROWING.

**23.** Subject as herein-after provided the powers conferred on the Commissioners for the first and third districts respectively of assessing rating taxing and charging the lands comprised in the first and third districts respectively under section 18 of the Act of 1775 and the power conferred by the Inclosure Act of 1795 on the Commissioners for the third district of raising and levying rates or sums of money upon the lands by such Inclosure Act directed to be divided and enclosed shall from the commencement of this Act cease and in lieu thereof the Commissioners for the united district shall have the powers of assessing rating taxing and charging by this Act conferred on them. Provided always that nothing in this section contained shall affect any assessments rates taxes or charges made imposed or levied prior to the commencement of this Act or the powers of the Commissioners for the united district as successors of the Commissioners for the first and third districts respectively to enforce payment of or recover any arrears unpaid at the commencement of this Act of any rates or taxes made imposed or levied prior to the commencement of this Act or any penalties or forfeitures for non-payment thereof. Powers of rating or taxing under Act of 1775 to cease.

**24.** It shall be lawful for the Commissioners for the united district at their first meeting and other annual general meetings from time to time to assess rate tax and charge all and singular the lands now lying within the third district and at the commencement of this Act subject or liable to be taxed or rated by virtue of the Act of 1775 with an equal and proportionable yearly rate or tax (over and above the general rate herein-after authorised) at the discretion of the Commissioners for the united district but not exceeding in any one year five shillings and sixpence an acre and so in proportion for any greater or less quantity which rate or tax shall be called the third district special rate. Special rate in third district.



A.D. 1906.

Purposes of  
third district  
special rate.

**25.** The purposes of the third district special rate are—

- (A) the payment of the costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act;
- (B) the payment of the said six sums of one hundred pounds each now owing to the said Herbert Flack Bird as aforesaid on the security of the rates of the third district and the said sum of seven hundred pounds over and above the said sum of six hundred pounds in which the Commissioners of the third district are now indebted and any further sums in which they may be indebted at the commencement of this Act and all interest due or to accrue due on such sums or any of them; and
- (c) the payment of all expenses and costs of or incidental to—
  - (i) the execution of the works numbered 1 2 and 3 by this Act specifically authorised;
  - (ii) the purchase of all lands by section 11 of this Act authorised to be taken other than a piece of land containing by admeasurement two roods or thereabouts situate in the parish of Doddington in the county of Cambridge adjoining the existing engine of the first district;
  - (iii) the making alteration or improvement of drains cuts banks and other works in the opinion of the Commissioners for the united district necessary at the commencement of this Act to be done or executed in the third district for effectually draining the third district as part of the united district or in the united district for the union or combining of the drainage of the first and third districts into one system of drainage or in the first district consequent on such union or combination but not including the expenses or costs of the execution of the Work No. 4 by this Act specifically authorised or of the repair or renovation of the existing engine and engine-house of the first district or of the erection of the new engine-house engineer's house and



other buildings for use in connexion therewith or the fitting up thereof with the necessary engines machinery pumps tanks and other appliances. A.D. 1906.

**26.** The Commissioners for the united district may from time to time borrow at interest on the security of the third district special rate—

Power to borrow on security of third district special rate.

(A) Such sum of money as may be necessary for purpose (A) specified in section 25 of this Act; and

(B) Such sums of money as may be necessary for purpose (B) specified in section 25 of this Act other than the payment of interest; and

(C) Such sum or sums of money not exceeding in the whole the sum of two thousand two hundred and seventy pounds as the Commissioners may think necessary for the purpose (C) mentioned in section 25 of this Act:

And may make and execute such mortgages charges and assignments of the third district special rate and other instruments as may be necessary or proper for carrying into effect the provisions of this section and the third district special rate shall be chargeable with the payment of the principal moneys so to be borrowed by the Commissioners for the united district on the security of the third district special rate and with the interest of such moneys from time to time and all mortgages granted under this Act of the third district special rate shall be deemed to be personal estate.

**27.—**(1) All moneys borrowed by the Commissioners for the united district under the powers of this Act for purpose (A) mentioned in section 25 of this Act shall be repaid within five years from the commencement of this Act and all moneys borrowed by them for purposes (B) and (C) mentioned in section 25 of this Act or either of them shall be repaid by them within a period not exceeding thirty years after the same are respectively borrowed and in each case either by equal yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Repayment of moneys borrowed on third district special rate.



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(2) If the Commissioners for the united district establish any sinking fund they shall appropriate and carry to that fund out of the third district special rate fund such equal yearly or half-yearly sums as being invested in securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money or in the mortgages bonds debentures debenture stock stock or other securities authorised by or under any Act of Parliament passed or to be passed of any county council or municipal authority or other local authority as defined by section 34 of the Local Loans Act 1875 not including annuities rentcharges or securities transferable by delivery or any securities of the Commissioners for the united district (herein-after referred to as "statutory securities") and accumulated in the way of compound interest at a rate not exceeding three pounds per centum per annum will be sufficient to discharge the loan or portion of a loan to the discharge of which it is applicable within the period within which the same is repayable.

(3) Any such sinking fund or any part thereof may be from time to time applied by the Commissioners for the united district in repayment of the principal moneys borrowed.

(4) Provided that whenever any of such principal moneys have been so paid off the Commissioners for the united district shall thenceforward until the whole of such principal moneys have been paid off pay out of the third district special rate fund into the sinking fund every year in addition to the other sums herein-before required to be set apart and appropriated and accumulate a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) Provided further that whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the payment of which it was set aside the said Commissioners may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums herein-before required to be paid thereto.



[6 EDW. 7.] *Warboys (Union of Districts) Drainage* [Ch. xcvi.]  
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**28.** All moneys raised by the Commissioners for the united district by the third district special rate and all moneys borrowed by them on the security of the third district special rate and the sum of three hundred pounds to be contributed by the Commissioners for the united district to the third district special rate fund out of the funds of the first district as herein-after mentioned and all other if any their receipts on account of the third district special rate shall constitute their third district special rate fund and the said Commissioners shall keep a separate and distinct account of all their receipts credits payments and liabilities in relation to the execution of this Act with respect to the third district special rate fund and the application thereof and that account shall be called "the third district special rate account" The third district special rate account shall be audited as other accounts of the said Commissioners.

A.D. 1906.

Third dis-  
trict special  
rate fund.

**29.** All moneys which shall be received by the Commissioners for the united district in respect of arrears of rates or taxes in the third district unpaid at the commencement of this Act and all other moneys forming part of the property of the third district at the commencement of this Act so far as the same shall not be required for paying or satisfying the current debts and liabilities (not including the said principal sums of six hundred pounds and seven hundred pounds mentioned in section 25 of this Act) of the Commissioners of the third district existing at the commencement of this Act and the net proceeds of sale which shall be received by the Commissioners for the united district for or in respect of such of the lands property and things mentioned in section 22 of this Act and thereby authorised to be sold as now belong to the third district if and so far as the same be sold within six calendar months after the commencement of this Act shall as and when received be paid or carried to the third district special rate fund Provided that such net proceeds of sale shall only be applicable to purposes of the third district special rate fund to which capital moneys are properly applicable.

Moneys to  
be carried to  
third district  
special rate  
fund.

**30.** The third district special rate fund shall be applied as follows:—

Application  
of third dis-  
trict special  
rate fund.

Firstly For paying the costs charges and expenses specified under heading (A) in section 25;



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Secondly For paying the costs of and incidental to (A) the assessing collecting and recovering of the third district special rate and the auditing of the third district special rate account (but not out of moneys borrowed) (B) the borrowing of moneys on the security of the third district special rate and (c) the repaying of the moneys so borrowed;

Thirdly For paying off the debts referred to under heading (B) of section 25 and (but not out of moneys borrowed) all interest due or to accrue due thereon;

Fourthly For paying (but not out of moneys borrowed) the interest from time to time payable on moneys secured on the third district special rate;

Fifthly For setting apart (but not out of moneys borrowed) the sinking fund for paying off moneys secured on the third district special rate if the Commissioners for the united district establish a sinking fund for that purpose;

Sixthly For paying the expenses and costs specified under heading (c) in section 25;

Seventhly In paying off the moneys from time to time secured on the third district special rate.

Third district special rate to cease when purposes of it satisfied.

**31.** When and so soon as all the purposes for which the third district special rate fund is by this Act made applicable are fully satisfied and discharged the third district special rate shall wholly cease and if there shall be any surplus of the special rate fund it shall be applied in reduction of the amounts which would otherwise be leviable under this Act upon lands comprised in the third district in respect of the general rate at such time or times and in such manner as the Commissioners for the united district shall think fit and such surplus or any part thereof may be invested by the Commissioners for the united district in any statutory securities and accumulated until in the opinion of the Commissioners for the united district it can advantageously be applied as aforesaid.

Contribution of three hundred pounds to third district special rate fund out of funds of first district

**32.** The Commissioners for the united district shall out of the moneys which at the commencement of this Act form part of the property of the first district (including any moneys which the said Commissioners may receive in respect of arrears of rates of that district then unpaid and any other moneys applicable to this purpose under section 33 of this Act) pay to the



[6 EDW. 7.] *Warboys (Union of Districts) Drainage* [Ch. xcvi.]  
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third district special rate fund the sum of three hundred pounds and in case such moneys shall not be sufficient for the payment of such sum of three hundred pounds the Commissioners for the united district shall raise the deficit in the first and second years next after the commencement of this Act or either of them as they shall think fit by assessing rating taxing and charging all and singular the lands now lying within the first district and at the commencement of this Act subject or liable to be taxed or rated by virtue of the Act of 1775 with an equal and proportionable rate or tax (over and above the general rate herein-after authorised) of such an amount per acre and so in proportion for any greater or less quantity as shall be sufficient to raise such deficit or as near as may be but not less than such deficit which rate or tax (if required) shall be called the first district special rate and the Commissioners shall pay the amount of such deficit when so raised to the third district special rate fund and if there shall be any surplus it shall be carried to the first district special fund herein-after mentioned.

A.D. 1906.  
and special  
rate (if re-  
quired) in  
first district  
to raise such  
sum.

**33.** The Commissioners for the united district shall establish a fund to be called "the first district special fund" and subject to the contribution of three hundred pounds to the third district special rate fund herein-before mentioned all moneys which shall be received by the Commissioners for the united district in respect of rates or taxes in the first district unpaid at the commencement of this Act and all other moneys forming part of the property of the first district at the commencement of this Act so far as the same shall not be required for paying or satisfying the debts and liabilities (if any) of the Commissioners of the first district existing at the commencement of this Act and the net proceeds of sale which shall be received by the Commissioners for the united district for or in respect of such lands property and things mentioned in section 22 of this Act and thereby authorised to be sold as now belong to the first district if and so far as the same be sold within six calendar months after the commencement of this Act shall be paid or carried as and when received to the first district special fund which fund shall be from time to time applied subject to the costs and expenses of or incidental to the same in reduction of the amounts which would otherwise be leviable under this Act upon lands comprised in the first district in respect of the general rate at such time or times and in such manner as the Commissioners for the united district

First district  
special fund.



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A.D. 1906] shall think fit and the Commissioners for the united district may from time to time invest such fund or any part thereof in any statutory securities and accumulate the same until in the opinion of the Commissioners for the united district it can advantageously be so applied. Provided that such net proceeds of sale or the sum to be paid under section 34 of this Act to the first district special fund may be applied in payment of the contribution of three hundred pounds to the third district special rate fund and to such other capital purposes as the Commissioners for the united district shall determine or for such other purposes as the Commissioners for the united district with the consent of the Local Government Board shall determine and the Commissioners for the united district may in the meantime invest such net proceeds of sale or such sum as aforesaid in any statutory securities and apply the income arising from such investments in reduction of the amounts which would otherwise be leviable under this Act upon lands comprised in the first district in respect of the general rate at such time or times and in such manner as the Commissioners for the united district shall think fit.

Property not  
sold to be  
credited to  
special funds.

**34.** If any lands property or things mentioned in section 22 of this Act belonging to the first or third districts and thereby authorised to be sold shall not be sold by the Commissioners for the united district within six calendar months from the commencement of this Act the Commissioners for the united district shall out of their general funds pay to the first district special fund the value at the commencement of this Act of such of the unsold lands property and things as belong to the first district and to the third district special rate fund the value at the commencement of this Act of such of the unsold lands property and things as belong to the third district and the Commissioners for the united district shall as soon as possible after the commencement of this Act cause the valuations necessary for the purposes of this section to be made and on any sale of any of such lands property or things after the expiration of six calendar months from the commencement of this Act the net proceeds of sale shall be paid into the general fund of the said Commissioners. Provided that the sum to be paid under this section to the third district special rate fund shall only be applicable to purposes of that fund to which capital moneys are properly applicable.



**35.** It shall be lawful for the Commissioners for the united district at their first meeting and other annual general meetings from time to time to assess rate tax and charge all and singular the lands lying within the united district and at the commencement of this Act subject or liable to be taxed or rated by virtue of the Act of 1775 by and with a proportionable yearly rate or tax at the discretion of the Commissioners for the united district (herein-after called "the general rate") Provided always that such general rate shall as between all such lands lying within the first district be at an equal rate per acre and as between all such lands lying within the third district at an equal rate per acre but as between such lands in the first district and such lands in the third district the rate per acre in the first district shall always (subject only to the provisions of section 33 of this Act as to the reduction of the amounts leviabie in the first district) bear to the rate per acre in the third district the proportion of four to five and that such rate shall not exceed in any one year for every acre of land in the first district the sum of four shillings and so in proportion for any greater or less quantity and for every acre of land in the third district the sum of five shillings and so in proportion for any greater or less quantity.

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Power to levy a general rate in united district but in certain proportions as between first and third districts.

**36.** All moneys from time to time raised by the general rate shall together with such sums of money as are under the powers in this Act contained borrowed (except under head (A) of section 40 which shall only be applied for the purposes therein mentioned) by the Commissioners for the united district on the security of the general rate be applied and disposed of by the said Commissioners as they shall think fit in and about the works banks drains mills engines headings dams and other matters and things authorised by the Act of 1775 as amended by the Middle Level Acts and this Act or authorised by this Act in respect of or in relation to the united district to be executed made or done or otherwise authorised for draining the united district or for maintaining or improving the drainage of the same and not by the Act of 1775 directed to be done by the Commissioners of the upper and lower districts for embanking or directed by this Act to be paid for out of the third district special rate fund or otherwise for the general purposes of the Act of 1775 as amended as aforesaid or of this Act in relation to the united district Provided that all moneys borrowed by the said Commissioners

Application of general rate or of moneys borrowed thereon.



A.D. 1906. as aforesaid shall be applied only to purposes to which capital is properly applicable which shall not include the ordinary maintenance of any works but shall include the payment of all moneys which shall under section 34 of this Act become payable out of the general funds of the said Commissioners.

Times and  
modes of  
payment of  
rates Pro-  
visions as to  
recovery and  
as to notice.

**37.**—(1) The general and special rates so to be taxed and assessed by the said Commissioners as aforesaid shall be paid in the case of the general rate by the owners and occupiers of the lands comprised in the united district or such of the said lands as are at the commencement of this Act by virtue of the Act of 1775 made subject or liable to be rated or taxed and in the case of the third district special rate by the owners and occupiers of the lands now comprised in the third district or such of the said lands as are at the commencement of this Act by virtue of the Act of 1775 subject or liable to be rated or taxed and in the case of the first district special rate (if any) by the owners and occupiers of the lands now comprised in the first district or such of the said lands as are at the commencement of this Act by virtue of the Act of 1775 subject or liable to be rated or taxed and in each case to such person or persons at such time or times and place or places as the Commissioners for the united district shall from time to time order direct and appoint the same in reference to such respective rates.

(2) All rates under this Act may be enforced by the same remedies as if the same were district rates levied under the powers of the Public Health Act 1875 and as if the Commissioners for the united district were a local authority within the meaning of that Act or at the option of the Commissioners for the united district by an action in any court of competent jurisdiction and the provisions of section 124 as to penalty for nonpayment of taxes and section 125 of the Middle Level Act 1862 as to the recovery of rates and taxes shall not apply to any rate under this Act.

(3) Notice of every rate imposed by the Commissioners for the united district shall be given by advertisement in one or more newspaper or newspapers circulating in the district or neighbourhood and every such notice shall state the rate per acre imposed the period for which the rate is to be levied and the time at which (not being less than thirty days from the date of the resolution imposing the rate) and the person or persons to whom payment is to be made.



(4) In determining the acreage of the lands in the occupation of any person for the purposes of this Act any lands in one occupation of less extent than one rood shall be deemed to be one rood and a fraction of a rood beyond a rood or an integral number of roods shall be deemed a rood. A.D. 1906.

**38.** In any case in which the same lands in the occupation of the same person are liable under this Act to be assessed and rated in respect of the general rate and also of a special rate by this Act authorised the Commissioners for the united district may from time to time assess the special rate in one and the same instrument jointly with the general rate and include the amounts payable under such respective rates in one notice or demand and recover the same in or by one and the same proceeding or remedy. General and special rates may be demanded and recovered together.

**39.** Every tenant or occupier of any lands rateable or liable with or to any rate hereby authorised is hereby required to pay all and every such sum or sums of money as shall be from time to time assessed rated or charged on or for or in respect of such lands in his tenancy or occupation in respect of any such rate and shall be entitled to deduct from any rent at any time payable by him to the owner of such lands the amounts so paid by him in respect of such rates. Provided that no greater sum shall be recovered at any one time from any tenant or occupier (who is not at the same time the owner) than the amount of rent owing by him or which shall have accrued due from him subsequent to the service of a notice upon him to pay the rate but no tenant or occupier shall be entitled to the benefit of this proviso unless he shall on demand by the clerk or other person appointed by the Commissioners for the united district produce to him the receipt for the last payment of rent made by such tenant or occupier or if he shall not have paid any rent give true and full information to such clerk or other person as to the rent at which he holds and the times at which the same becomes payable and the amount of rent (if any) owing by him. Tenants and occupiers to pay rates and to deduct them from rents.

**40.** The Commissioners for the united district may from time to time borrow at interest on the security of the general rate— Power to borrow on security of general rate.

(A) Any sums of money not exceeding in the whole the sum of six thousand two hundred pounds for—

(i) the purchase of the piece of land by section 11 of this Act authorised to be taken containing



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by admeasurement 2 roods or thereabouts situate in the parish of Doddington in the county of Cambridge and adjoining the existing engine-house of the first district ;

(ii) the execution of the Work No. 4 by this Act specifically authorised ;

(iii) the repair or renovation of the existing engine and engine-house of the first district ; and

(iv) the erection of the new engine-house engineer's house and other buildings for use in connexion therewith and the fitting up thereof with the necessary engines machinery pumps tanks and other appliances :

(B) Such sum or sums of money not exceeding in the whole three thousand pounds as the Commissioners for the united district may from time to time think necessary for the purposes in relation to the united district of the Act of 1775 as amended by the Middle Level Acts and by this Act or of this Act (not being purposes of the third district special rate) including all sums which shall become payable out of the general funds of the said Commissioners under section 34 of this Act :

And may execute and make such mortgages charges and assignments of the general rate and other instruments as may be necessary or proper for carrying into effect the provisions of this section and the general rate shall be chargeable with the payment of the principal moneys so to be borrowed by the Commissioners for the united district on the security of the general rate as aforesaid and with the interest of such moneys from time to time All mortgages granted under this Act of the general rate shall be deemed to be personal estate.

Period of  
repayment of  
moneys bor-  
rowed on  
security of  
general rate.

**41.**—(1) All moneys borrowed by the Commissioners for the united district on the security of the general rate shall be repaid within a period not exceeding thirty years after the same are respectively borrowed either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be



[6 EDW. 7.] *Warboys (Union of Districts) Drainage* [Ch. xcvi.]  
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made within one year from the date of borrowing the sum in A.D. 1906.  
respect of which the payment is made.

(2) If the said Commissioners establish a sinking fund they shall appropriate and carry to that fund such equal yearly or half-yearly sums as being invested in statutory securities and accumulated in the way of compound interest at a rate not exceeding three pounds per centum per annum will be sufficient to discharge the loan or portion of a loan to the discharge of which it is applicable within the said period of thirty years.

(3) Any such sinking fund or any part thereof may be from time to time applied by the said Commissioners in repayment of the principal moneys borrowed.

(4) Provided that whenever any of such principal moneys have been so paid off the said Commissioners shall henceforward until the whole of such principal moneys have been paid off pay into the sinking fund every year in addition to the other sums herein-before required to be set apart and appropriated and accumulate a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) Provided further that whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the repayment of which it was set aside the said Commissioners may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums herein-before required to be paid thereto.

**42.** If the Commissioners for the united district at any time pay off any moneys borrowed by them under this Act otherwise than by instalments or a sinking fund or out of the proceeds of sale of land or out of any capital moneys properly applicable to the purpose of such repayment and not borrowed for that purpose they may reborrow the same or any less amount so nevertheless that the moneys originally borrowed and the moneys reborrowed shall for the purposes of repayment be deemed to form the same loan and so that the obligations of

Power to re-borrow.



A.D. 1906. the said Commissioners with respect to the sinking fund to be provided or the instalments to be paid shall not be affected by such reborrowing.

Form of mortgages.

**43.** Subject to the provisions of this Act as to the repayment of loans mortgages of any rate under this Act may provide for the payment of the sum borrowed at such times and in such manner with such interest and with such provisos and conditions for redemption and other provisions as shall be agreed upon and may be in the form contained in Schedule B to the Commissioners Clauses Act 1847 or in such other form as the Commissioners for the united district shall deem necessary or proper.

Mortgagees may appoint receiver.

**44.** The mortgagees of the Commissioners for the united district may enforce payment of arrears of interest or principal or principal and interest due to them by the appointment of a receiver of the rates mortgaged to them respectively but in order to authorise the appointment of a receiver of any rate in respect of arrears of principal the amount owing to the mortgagees of such rate by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

Power to mortgagees to levy rates on failure of Commissioners to do so.

**45.** If the Commissioners for the united district at any time while any money shall remain due on any mortgage of any rate under this Act refuse or neglect to exercise the power vested in them under this Act of assessing levying or recovering such rate so as to meet and provide for the payment of the principal moneys or interest due on any such mortgage or any part thereof respectively according to the terms of such mortgage then (without prejudice to the provisions of this Act relative to the appointment of a receiver) for the purpose of enforcing the payment of principal and interest or either of them due and payable on such mortgage the mortgagee thereunder if only one his personal representative or assigns or the majority in value of the mortgagees thereunder if more than one their personal representatives or assigns shall have and may exercise the same or the like powers rights and remedies for assessing levying and recovering such rate or for enforcing payment thereof as are for the time being exerciseable by the said Commissioners.

Protection of lenders.

**46.** A person advancing any money to the Commissioners for the united district and receiving in consideration of such advance any security under this Act shall not be bound to



inquire into the application of the money advanced or be in any way responsible for the non-application or misapplication thereof. A.D. 1906.

**47.** The Commissioners for the united district shall within twelve calendar months after the commencement of this Act either repay to the said Herbert Flack Bird out of moneys to be borrowed as aforesaid on the security of the third district special rate the said six several sums of one hundred pounds each owing to him as aforesaid together with (but not out of moneys borrowed) all interest due thereon up to the date of repayment or at the option of the said Commissioners in lieu of the said six several mortgages or securities held by him as aforesaid on the security of the taxes or assessments of the third district for securing the said six several sums of one hundred pounds and interest mortgage charge and assign in like manner as is herein-before authorised the third district special rate for and with the repayment of the said six several sums of one hundred pounds each and all interest then due or thereafter to grow or become due thereon which rate shall be a security for and charged and chargeable with the due payment of the said six several sums of one hundred pounds and interest as aforesaid until such repayment as aforesaid or such assignment as aforesaid shall be made and which aggregate sum of six hundred pounds shall until the same shall be repaid or discharged be considered and taken as part of the sums herein-before authorised to be borrowed on the security of the third district special rate under heading (b) specified in section 26 of this Act.

Debts to  
Herbert  
Flack Bird  
on security  
of third dis-  
trict rates or  
taxes to be  
repaid or  
secured on  
third district  
special rate.

**48.—(1)** The clerk to the Commissioners for the united district shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to any sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the said clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual

Annual re-  
turn to Local  
Government  
Board with  
respect to  
sinking  
funds.



A.D. 1906. — payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of any such sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of any such sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the said clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Commissioners for the united district have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

## PART VI.

### MISCELLANEOUS.

Power to  
enter into  
agreements  
with other  
districts.

**49.** It shall be lawful for the Commissioners for the united district on the one hand and for the Commissioners of any other district or districts comprised within the Act of 1775 or the Middle Level Acts on the other hand to enter into any such contracts and agreements as are authorised by section 198 of the Middle Level Act 1844 notwithstanding that none of the



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Act, 1906.

districts so contracting or agreeing is drained by wind and whatsoever the means by which such districts are or at any time may be respectively drained and any engine cut drain or other work which may be erected or made use of for the purpose of that section as amended by this section may under any such contract or agreement be the sole property either of the Commissioners for the united district or of the other district or districts parties to such contract or agreement as may be agreed or may be the joint property of the respective Commissioners who may be parties to such contracts or agreements in such portions or shares as shall be therein stated. A.D. 1906.

**50.** Sections 51 to 54 inclusive of the Act of 1775 shall continue as heretofore to apply to and in the part of the united district now comprised in the first district the Commissioners for the united district being for all the purposes of such sections substituted for the Commissioners of the first district. Sections 51 to 54 inclusive of Act of 1775 to continue to apply to first district.

**51.** Sections 81 82 84 85 and 86 of the Act of 1775 shall apply to and in the united district to the same extent and in the same manner in all respects as at the passing of this Act such sections respectively apply to and in the first and third districts and in relation to the united district the words "by virtue of this Act" wherever such words occur in such sections shall be read as referring to the Act of 1775 as amended by the Middle Level Acts and this Act the Commissioners for the united district being for all the purposes of those sections substituted for the Commissioners of the first district or the Commissioners of the third district as the case may be. Application of sections 81 and 82 and 84 to 86 of Act of 1775.

**52.** Section 83 of the Act of 1775 shall from the commencement of this Act be read as if the words "except in the said third district" were omitted therefrom in the first place where the same occur and as if the words "except in the said third district who are not intended to be hereby restrained from cutting waterings for cattle in any place but from the corner of the Three Hundred Acre Farm to Wilthorn Ware" were omitted therefrom. Amendment of section 83 of Act of 1775.

**53.** The Commissioners for the united district may make byelaws with penalties for the better protection of the works of all kinds authorised to be made or maintained by the Act of 1775 as amended by the Middle Level Acts and this Act or Power to make bye-laws.



A.D. 1906. — by this Act or any other works or things in connexion therewith or under their control (that is to say):—

- (A) For prohibiting the discharge of any sewage or other offensive matter into or otherwise fouling the water or obstructing the flow thereof in any such works:
- (B) For requiring the occupiers of any lands within the limits of the united district to prevent the passage from their own drains into those of the said Commissioners of any matter or thing likely to foul the water or obstruct the flow thereof:
- (c) For preventing the defacing injuring or removing of any placards notices notice boards fences or boundaries belonging to or set up by the authority of the said Commissioners.

All such byelaws shall be at all times exhibited in one or more than one conspicuous place on the lands comprised in the united district and the provisions of the Public Health Act 1875 relating to byelaws and the prosecution of offences and recovery of penalties (except the provision of requiring byelaws to be under a common seal) shall so far as capable of being applied apply to any byelaws made under the authority and in the manner provided in this Act. All byelaws made by the Commissioners for the united district under this section shall be signed by the Commissioners for the united district or any two of them.

Dikes to be kept of a certain depth and cleansed &c.

**54.**—(1) All owners and occupiers of lands within the united district shall from time to time and at all times hereafter keep or cause to be kept all the drove way dikes outring dikes or division dikes belonging to them respectively and leading to any mill drain within the united district or any drain belonging to the united district of a depth of two feet below the standard mark herein-after mentioned and of a bottom width of four feet at least and shall also from time to time and at all times hereafter cause the same dikes to be well and effectually roaded scoured cleansed opened and repaired and cause proper culverts to be laid and maintained therein where necessary for the better issuing running and conveying the waters therein and if any owner or occupier shall not within fourteen days next after notice and direction in that behalf under the hands of three or more of the Commissioners for the united district shall be given to him cause and procure such



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*Act, 1906.*

dikes to be roaded scoured cleansed opened and repaired and made of the depth and width aforesaid respectively and such culverts to be laid or maintained in pursuance of and according to such notice and direction the Commissioners for the united district or any three or more of them may cause the same to be done in a proper and effectual manner and levy the charges and expenses thereof on the owner or owners occupier or occupiers of the lands to which such dikes or culverts shall appertain or belong and every such owner or owners or occupier or occupiers for every such neglect shall forfeit the sum of threepence for every rod of the dike so neglected to be roaded scoured cleansed opened repaired deepened or widened. A.D. 1906.

(2) The standard mark herein-before mentioned shall be fixed from time to time by the Commissioners for the united district Provided always that the said Commissioners shall on or within one calendar month after the twenty-first day of March in every year fix the standard mark for the year ending the twenty-first day of March next succeeding and if the said Commissioners fail to do so the standard mark for such year shall be the standard mark of the preceding year and the said Commissioners shall from time to time indicate in a plain manner on the outside of one of their engine-houses or in any accessible and convenient spot in the neighbourhood thereof that they shall think fit the standard mark for the time being.

**55.** All penalties forfeitures charges costs and expenses imposed or recoverable under the Act of 1775 as amended by this Act or under this Act or any byelaw made under the authority thereof shall be recoverable summarily before a court of summary jurisdiction in manner provided by the Summary Jurisdiction Acts Provided that costs charges or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties.

**56.** A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or the Act of 1775 by reason of his being a Commissioner for the united district or being liable to any tax or other charge under this Act or the Act of 1775. Judges &c. not disqualified.

**57.—**(1) Notices orders and any other documents required or authorised to be served under the Act of 1775 or this Act may be served by post or by delivering the same to or at the residence Service of notices &c.



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A.D. 1906. of the person to whom they are respectively addressed or where addressed to the owner or occupier of premises by delivering the same or a true copy thereof to some person on the premises or if there is no person on the premises who can be so served by fixing the same on some conspicuous part of the premises.

(2) Any notice by the Act of 1775 or this Act required to be given to the owner or occupier of any premises may be addressed by the description of the "owner" or "occupier" of the premises naming them in respect of which the notice is given without further name or description.

Unqualified persons who have acted as Commissioners for third district absolved from penalties. Confirmation of acts and appointment of temporary Commissioners.

**58.** No person shall be subject to or be proceeded against for any penalty or sum to which he may have become subject or which he may have become liable to pay by reason of his having acted at any time as a Commissioner for drainage for the third district without having been duly qualified and all acts and things of whatsoever nature which would have been valid if done by duly qualified Commissioners shall be deemed to be valid notwithstanding that the Commissioners or some or one of the Commissioners acting de facto and doing or taking part in the same or forming or joining to form a quorum may not have been duly qualified and the persons whose names descriptions and addresses are specified in the First Schedule to this Act are hereby appointed Commissioners for drainage of the third district from the passing of this Act and authorised to exercise all and every the powers of Commissioners of the third district under the Act of 1775 as amended by the Middle Level Acts as they may think necessary in order to effectually carry on or provide for the drainage of the third district until the commencement of this Act including in particular all powers and remedies for suing for recovering and obtaining payment of taxes rates and assessments made imposed or levied in such district before the passing of this Act by the Commissioners for the third district or the persons acting as such.

Parts of Act of 1775 repealed.

**59.** The Act of 1775 is to the extent mentioned in the Second Schedule to this Act but so far only as relates to the first and third districts repealed from the commencement of this Act but nothing in this Act contained shall affect the provisions of the Act of 1775 relating to the second fourth and fifth districts for draining or any of them.



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*Act, 1906.*

**60.** This Act or anything herein contained shall not extend or be construed to extend to affect invalidate lessen diminish alter or take away any of the rights powers or authorities vested by the Act of 1775 in the said respective Commissioners of the said upper and lower districts or of either of such districts for embanking.

A.D. 1906.

—  
 Saving as to  
 rights of  
 Commission-  
 ers for upper  
 and lower  
 districts for  
 embanking.

**61.**—(1) Nothing in this Act contained shall be held or construed to exempt any of the lands that may be acquired by the Commissioners for the united district under the power conferred upon them by section 11 and by section 14 of this Act from the taxes imposed or to be imposed from time to time by the Middle Level Commissioners under the authority of the Middle Level Acts or any of them but such lands shall remain and continue liable to be taxed by the Middle Level Commissioners whose rights remedies and powers in connexion with the collection levying and recovery of taxes under the provisions of the Middle Level Acts or any of them shall not be abridged limited or affected by anything in this Act contained and the Commissioners for the united district shall pay the taxes in respect of such lands.

For pro-  
 tection of  
 Middle  
 Level Com-  
 missioners.

(2) The Commissioners for the united district shall within fourteen days next after the sixth day of April in any year in which any such lands shall have been acquired by them during the preceding twelve months cause a plan to be prepared showing the positions and quantities of the lands acquired by them during such twelve months and such plan shall be signed by at least three of the Commissioners for the united district and deposited at the office of the clerk to the Middle Level Commissioners within such fourteen days as aforesaid.

**62.** Save and subject to the powers by this Act conferred on the Commissioners for the united district to make or relating to Work No. 4 in section 17 of this Act mentioned this Act or anything herein contained shall not extend or be construed to extend to invalidate lessen diminish alter or take away any of the rights duties powers or authorities vested by the Middle Level Acts in the Middle Level Commissioners.

Saving of  
 rights of  
 Middle Level  
 Commission-  
 ers.

**63.** All the costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Commissioners for the united district out of the third district special rate leviable by them under this Act or out of money borrowed on the security thereof.

Costs of Act.



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A.D. 1906.

SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

| Names.                            | Descriptions.          | Addresses.                |
|-----------------------------------|------------------------|---------------------------|
| Reverend Justus Stephen Serjeant. | Clerk in Holy Orders - | Warboys Huntingdonshire.  |
| George Lewis Ekins - -            | Farmer - - - -         | Warboys Huntingdonshire.  |
| Charles Martin Saunders -         | Farmer - - - -         | Warboys Huntingdonshire.  |
| Thomas Longland - -               | Farmer - - - -         | Warboys Huntingdonshire.  |
| Thomas Piggott - -                | Brewer and Farmer -    | Warboys Huntingdonshire.  |
| Alfred Fuller - - -               | Farmer and Merchant -  | Ramsey Huntingdonshire.   |
| Sidney Saunders - -               | Farmer - - - -         | Warboys Huntingdonshire.  |
| George Saunders Newton -          | Farmer - - - -         | Warboys Huntingdonshire.  |
| Arthur Chew - - -                 | Farmer - - - -         | Oldburst Huntingdonshire. |
| Richards Farey - -                | Farmer - - - -         | Warboys Huntingdonshire.  |

THE SECOND SCHEDULE.

| Session and Chapter. | Sections repealed so far as relates to the First and Third Districts.                                                                                      |
|----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 15 Geo. III. c. 65   | Sections 7 to 10 inclusive 12 13 15 to 40 inclusive 43 to 49 inclusive 55 63 64 to 69 inclusive 74 75 78 79 80 87 91 to 104 inclusive 106 108 109 and 116. |

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